

COURT OF APPEALS NO. 87007-6

IN THE COURT OF APPEALS
DIVISION I
OF THE STATE OF WASHINGTON

ZACKARIAH J. BENNETT,

Petitioner,

and

MELVINA MANNING,

Respondent.

RESPONDENT'S ANSWER

Nancy A. Gass
WSBA No. 49685
Attorney for Respondent

O.W. Hollowell & Associates
P.O. Box 1041
4471 Tolt Avenue
Carnation, WA 98014
(425) 333-4848

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STATEMENT OF THE CASE

Mr. Bennett filed this civil action in in King County Superior Court in 2023. Ms. Manning filed a Motion for Summary Judgment in this matter. On July 3, 2024 the trial court entered an order granting Ms. Manning's Motion for Summary Judgement. *Bennett v. Manning, app. at p. 3 (2024).*

In this case, the trial court found that it is undisputed that Mr. Bennett's parental rights had been terminated by the Snohomish County Superior Court in 2013. *Bennett, app. at p.8 and p. 9 (2013)*. Thus Mr. Bennett had no basis for civil action some 10 years after his parental rights had been terminated. *Id. at p. 9.*

ARGUMENT

The trial court did not err when it indicated that Mr. Bennett's complaint had been adjudicated previously in court. *Id at p. 3.* Mr. Bennett made his allegations against Ms. Manning to the court that heard her request for a domestic violence protection order. Ms. Manning submitted to the Superior Court a copy of the declaration presented in the DVPO case refuting Mr. Bennet's various civil claims against Ms. Manning. *Manning v. Bennett app. at p. 10.(2022).*

Mr. Bennett's parental rights were voluntarily terminated. *Bennett at p. 14.* He has no claim against Ms. Manning with respect to his biological son.

CONCLUSION

Ms. Manning respectfully requests the Superior Court's Order granting Summary Judgment be upheld because Mr. Bennett voluntarily relinquished his parental rights and thus does not have a cause of action against Ms. Manning.

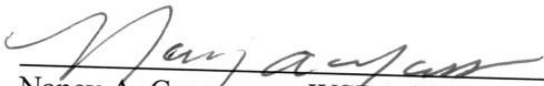
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CERTIFICATE OF COMPLIANCE

I, Nancy A. Gass, attorney of record for Respondent Melvina Manning in the above-entitled matter declare under penalty of perjury under the laws of The State of Washington the following:

1. The word count of the responsive brief is 310 inclusive of the title page and associated tables.

Respectfully Submitted this 7th day of July 2025:


Nancy A. Gass WSBA #49865
Attorney for Respondent, Melvina Manning

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5 **SUPERIOR COURT OF WASHINGTON FOR KING COUNTY**

6 ZACKARIAH BENNETT,

7 Plaintiff,

8 **NO. 23-2-11352-7 SEA**

9 v.

10 ORDER GRANTING
11 DEFENDANT'S MOTION FOR
12 SUMMARY JUDGMENT

13 MELVINA MANNING,

14 Defendant.

15 THIS MATTER came before the Court on Defendant's Motion for Summary Judgment. The
16 Court has considered the record in this case, the materials submitted by the parties in regard to
17 this motion, as well as oral arguments from the parties, and the Court finds itself fully informed.
18 Now therefore,

19 IT IS HEREBY ORDERED, ADJUDGED, and DECREED as follows:

20 The Court finds that there are no genuine issues of material fact for trial in regard to the
21 issues presented and the Defendant is entitled to Summary Judgment as a matter of law.

22 Plaintiff's complaint alleges that the Defendant committed tortious interference with
23 parental rights, both criminally and civilly. As the Plaintiff is not an elected or appointed
24 prosecuting attorney, Plaintiff has no lawful basis or authority as an individual to bring a
25 criminal prosecutorial action on behalf of the State of Washington. Further, the facts are
26 undisputed that the Plaintiff does not have any legal parental rights to be interfered with, as these
rights were previously terminated by the Snohomish County Superior Court in 2013, thus
providing no basis for further civil action on these grounds. Any other issues presented in Mr.

Order Granting Defendant's Motion
for Summary Judgment

Page 1 of 2

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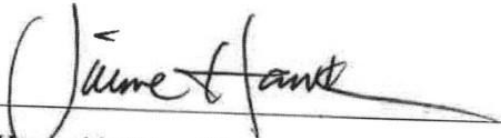
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1 Bennett's complaint have been adjudicated previously in court or are additional criminal charges
2 the Plaintiff wishes to bring against the Defendant and are without merit.

3 Therefore, the Defendant's Motion for Summary Judgment is GRANTED and the
4 Plaintiff's case is dismissed.

5 **IT IS SO ORDERED.**

6 DONE IN OPEN COURT on July 3, 2024

9 
10
11 Honorable Jaime Hawk

12
13 Presented by:

14
15 /s/ Nancy A. Gass
16 Nancy A. Gass
17 Attorney for Respondent

49685
WSBA #

CERTIFIED
COPY

FILED

2013 MAR 18 PM 3:36

SONYA KRASKI
COUNTY CLERK
SNOHOMISH CO. WASH

IN THE SUPERIOR COURT OF WASHINGTON FOR SNOHOMISH COUNTY

IN RE THE ADOPTION OF:

TIMOTHY E. BENNETT II

(DOB: 01/11/2007)

NO. 13-5-00050-3

ORDER AUTHORIZING
RELINQUISHMENT, TERMINATING
PARENTAL RIGHTS AND GRANTING
CUSTODY

THIS MATTER having come on regularly for hearing this day and the Court having read the verified Petition for Adoption and Relinquishment filed in this cause and acting upon the recommendation of Joan Ward, MSW, LICSW, who prepared a combined Pre-Post Placement Report herein, having heard argument of counsel for petitioners and having previously entered Findings of Fact and Conclusions of Law, now, therefore, it is hereby

ORDERED that Zackariah J. Bennett, the natural father of the above-named child, a boy, born in Wheat Ridge, Colorado on January 11, 2007, to Kelly J. Jovanovich, is hereby authorized to relinquish custody of said child to John Arthur Manning and Melvina Catherine Manning, husband and wife, petitioners herein; and it is further

ORDERED that the Consent to Adoption, Relinquishment of Custody and Termination of Parental Rights form signed by Zackariah J. Bennett, natural father of said child, is hereby approved and accepted and the parent-child relationship between the above-named child and Zackariah J. Bennett is hereby terminated, thereby divesting he and the child of all legal rights, powers, privileges, immunities, duties and obligations between one

ORDER AUTHORIZING RELINQUISHMENT,
TERMINATING PARENTAL RIGHTS AND
GRANTING CUSTODY - 1

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ORIGINAL

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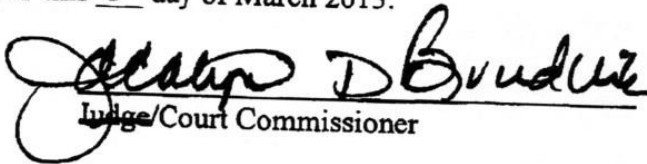
1 another as provided by law; and it is further

2 ORDERED that John Arthur Manning and Melvina Catherine Manning, petitioners
3 herein, may receive the child that is the subject of this adoption proceeding, born to Kelly J.
4 Jovanovich in Wheat Ridge, Colorado on January 11, 2007, under their temporary custody
5 and care, and their Petition for Relinquishment is hereby approved, and they are further
6 appointed legal guardians of the child with responsibility to care for and support the child
7 until further order of this court; and in addition, the petitioners or either of them, are hereby
8 given authority to obtain medical, dental, or any other required health care for said child,
9 known to them as **Timothy E. Bennett II**, and it is further

10 ORDERED that the Snohomish County Superior Court Clerk is hereby authorized
11 and directed to issue to the petitioners or undersigned attorney certified copies of this order
12 upon request without further order of this court; and it is further

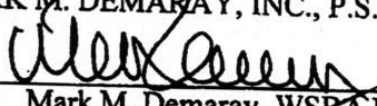
13 ORDERED that the Indian Child Welfare Act, 25 USC §1901, et seq. and the
14 Servicemembers Civil Relief Act of 2004, 50 USC §501 et seq. do not apply to this
15 proceeding.

16 DONE IN OPEN COURT this 18th day of March 2013.

17 
18 Judge/Court Commissioner

19 Presented by:

20 LAW OFFICES OF
21 MARK M. DEMARAY, INC., P.S.

22 By: 
23 Mark M. Demaray, WSBA No. 11800
24 Attorney for Petitioners
25
26

ORDER AUTHORIZING RELINQUISHMENT,
TERMINATING PARENTAL RIGHTS AND
GRANTING CUSTODY - 2

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County of Snohomish
SONYA KRASKI, Clerk of Court
do hereby certify that the foregoing is a true and correct copy of the original now on file in my office.
In witness whereof, I have set my hand and the Seal of the Court this MAR 18 2013 day of March 2013.
SONYA KRASKI, County Clerk
[Signature]

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8 **IN THE SUPERIOR COURT OF WASHINGTON FOR SNOHOMISH COUNTY**

9 IN RE THE ADOPTION OF:

10 TIMOTHY E. BENNETT II

11 (DOB: 01/11/2007)

NO. 13-5-00050-3

**FINDINGS OF FACT AND
CONCLUSIONS OF LAW
RE TERMINATION OF PARENT/
CHILD RELATIONSHIP**

12
13
14 THIS MATTER came on regularly for hearing this day on the petition of John Arthur
15 Manning and Melvina Catherine Manning, husband and wife, for the relinquishment of the
16 above-named child into their care, and for the termination of the parent-child relationship
17 between the above-named child and his biological father; the petitioners appeared through
18 their attorney Mark M. Demaray of the Law Offices of Mark M. Demaray, Inc., P.S., and the
19 Court having heard the evidence and reviewed the pleadings on file herein, and now,
20 therefore, makes the following:

21 **I. FINDINGS OF FACT**

22 1. Child. Timothy Edward Bennett II, a boy, was born to Kelly J. Jovanovich in
23 Wheat Ridge, Colorado on January 11, 2007.

24 2. Father.

25 2.1 Name, Address and Age. Zackariah J. Bennett, father of the child, was
26 born on January 7, 1981, is thirty-two (32) years old and presently resides at c/o King County

FINDINGS OF FACT REGARDING
TERMINATION OF PARENTAL RIGHTS - 1

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1 Correctional Facility, 500 – 5th Avenue, Seattle, Washington 98104.

2 3. Consent. The child's father Zackariah J. Bennett, has executed a Consent to
3 Adoption, Relinquishment and Termination of Parental Rights form in proper Washington
4 state statutory form in which he has agreed to the application of Washington law to this
5 adoption. That Consent form is filed herewith, he understands the consequences of his
6 actions and is not acting under fraud, duress, undue influence or mistake of fact and he is
7 mentally competent. More than 48 hours have passed since the signing of that Consent form
8 and the birth of the child, and his Consent to Adoption, Relinquishment and Termination of
9 Parental Rights should be approved and accepted at this time.

10 4. Venue. All appearing parties have agreed to jurisdiction and venue herein.

11 5. Federal Law. Neither the Indian Child Welfare Act, 25 U.S.C. § 1901 et seq.,
12 nor the Servicemembers Civil Relief Act of 2004, 50 U.S.C. § 501 et seq., apply to these
13 proceedings.

14 6. Best Interest. Termination of the natural father's parental rights herein is in
15 the best interest of the child that is the subject of this proceeding.

16 FROM THE FOREGOING Findings of Fact, the Court now makes the following:

17 **II. CONCLUSIONS OF LAW**

18 7. This Court has jurisdiction of the person of the above-named child for the
19 purpose of these adoption proceedings and has jurisdiction of the subject matter.

20 8. The Consent to Termination of Parental Rights and Adoption form which
21 have been filed herein should be approved and accepted by this Court at this time.

22 9. The parent-child relationship between the child and his biological father
23 Zackariah J. Bennett should be terminated, and the relinquishment of the child to the
24 petitioners should be approved.

25
26
FINDINGS OF FACT REGARDING
TERMINATION OF PARENTAL RIGHTS - 2

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DONE IN OPEN COURT this 16th day of March 2013.

Presented by:

LAW OFFICES OF
MARK M. DEMARAY, INC., P.S.

By: Mark M. Demaray, WSBA No. 11800
Attorneys for Petitioners

**Superior Court of Washington
For King County**

No. 22-2-09380-3

Melvina Catherine Manning 05/13/1959
Petitioner DOB

vs.

Zackariah Jeremiah Bennett 01/07/1981
Respondent DOB

**Declaration of
Melvina Catherine Manning (Name)**
(DCLR)
(Optional Use)
(Clerk's Action Required)

This declaration is made by:

Name: Melvina Catherine Manning

Age: 63

Relationship to the parties in this action: Parent of Zackariah Bennett, grandparent of Timothy Bennett

I declare,

I am responding to the latest paperwork (Declaration) that was filed by Zackariah Bennett.

1. Alienation of Affections. Zackariah was never wrongfully deprived of the company of his child. He was given several opportunities to meet with Timothy's counselor to start a reunification. He did not take those opportunities. He could have filed for a Parenting Plan or visitation rights with the Courts, but he never did.

2. Defamation of Character. False allegations of DV crimes against myself are clearly stated on the attached documents. We had a Restraining Order filed & approved because of the threats that Zackariah made. Timothy was never allowed to walk to his grade school or middle school as we were always wondering when Zackariah would try to kidnap Timothy. The schools were made aware of the circumstances as well.

3. Intentional and/or Reckless Infliction of Emotional Distress. He states that I made malicious statements to his children, yet he was in his car during the time his children were at my door. The only thing that was said to his children, of which Jessica heard and responded

to, was my apology about my 2 Boxers being so loud and aggressive. I explained they don't care much for strangers. Jessica responded "I told them you had 2 big dogs" I then asked her what she was doing here. She responded Zack wants to see Timothy & his brother & sister want to meet Timothy. I told her that is not happening and told them to leave. My declaration as well as the declaration of my neighbor Elizabeth Haskins has already been submitted. The Intentional Infliction of Emotional Distress was made by Zackariah & Jessica. These children should have never been sent to my door and should not have been forced to be a part of the drama that Zackariah knew would take place. He was told in June 2019 when he tried to lure Timothy out of our home, that he is not wanted here.

4. Zackariah is seeking an injunction on any prevention of communication between siblings. This hearing is not about visitation which is what almost all the filings Zackariah has made pertain to. He has had 10+ years to file in Family Law.

This is about harassment and the protection of Timothy. Timothy told his father he did not want to talk to or see him at this time. Zackariah became agitated and demanded to know why. Timothy simply said I'm not ready. Zackariah then demanded Timothy meet his siblings who were standing at the gate. Timothy politely said no thank you then walked away. Zackariah continues to harass us via the Court EFile system by filing documents that have nothing to do with the petition before you. We are asking for this order to be put into place so we can go about our lives without the constant worry of Zackariah showing up at our home, Timothy's school or his work.

I am submitting documents to show that we were death threats made against us from Zackariah Bennett as well as the handwritten statement from Timothy's mother.

(Attach additional single-sided pages if necessary and number them. Use form DVSTMT, Statement.)

I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at Carnation (city) WA (state) on 8/01/2022 (date).

M. Manning
Signature of Declarant

Melvin Manning
Print or Type Name

**Superior Court of Washington
For King County**

No. 22-2-09380-3

<u>Melvina Catherine Manning</u>	<u>05/13/1959</u>
Petitioner	DOB
vs.	
<u>Zackariah Jeremiah Bennett</u>	<u>01/07/1981</u>
Respondent	DOB

**Declaration of
Melvina Catherine Manning (Name)**
(DCLR)
(Optional Use)
(Clerk's Action Required)

This declaration is made by:

Name: Melvina Catherine Manning

Age: 63

Relationship to the parties in this action: Parent of Zackariah Bennett, grandparent of Timothy Bennett

I declare,

I am acting as Timothy Edward Bennett II's (age 15) advocate. He requested that the initial harassment order be filed on June 21, 2022, which then converted to a domestic violence order by the judge in Issaquah. The judge reviewed Zackariah's history of violence and previous restraining order from 2008 (08-3-03956-4 SEA), when making the decision to change our request from a harassment order to a protection order. Timothy has asked that Zackariah Bennett discontinue his showing up at our residence and bullying/harassment behaviors. This was the 2nd incident when Zackariah showed up uninvited to our residence and caused a scene. Zackariah indicated on July 1st to the judge, that he never left his vehicle, but our security video shows him standing on our porch, holding the screen door open, making demands to speak to Tim. Tim came into Zack's line of sight, but did not feel comfortable near him, told him he didn't want to speak to him, and then returned to his room. Zackariah's body language, and mannerisms are indications of harassment and intimidation that made neither Timothy nor myself comfortable. Zackariah showed up to our residence on June 23, 2019 when he sent his ex-girlfriend to the door to try to get Timothy to open the door. She banged on the door, tried opening the door, while Zackariah was honking on his horn. We called the police after this incident also, however since they had already left, the only thing they said we could do was file a harassment order. We chose to let it go at that time.

In regards to the various RCW citations that Zackariah cited, the definition of domestic violence changed in 2022 to include "engaging in psychological aggression, including inflicting fear, humiliating, degrading, or punishing the other party." Zackariah continually showing up to our residence, unannounced, uninvited, proceeding to harass, degrade myself, make continued threats and accusations, meets the definition of domestic violence and harassment. On April 3rd, 2022, Zackariah posted on his Facebook asking if "Do any of you have kids attending Carnation High School? Hit me up if so." This then caused a level of alarm to Tim and our family.

As Timothy's advocate, he has indicated to his grandfather and I that he does not want a relationship with Zackariah Bennett at this time. He is 15-½ years old and we allow him to make this choice on his own. We all feel that Zackariah's continue harassment and bullying behaviors have gone too far and are asking that the judge uphold the initial protection order and make this a permanent order. He doesn't respect boundaries. We would also like this to apply to his wife Jessica Bennett also, as she comes with him and is also a party in these unwelcome visits also.

(Attach additional single-sided pages if necessary and number them. Use form DVSTMT, Statement.)

I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at Carnation (city) WA (state) on July 18, 2022 (date).

M. Manning
Signature of Declarant

Melvina Manning
Print or Type Name

SONY
C
SNOHOMISH

IN THE SUPERIOR COURT OF WASHINGTON FOR SNOHOMISH COUNTY

NO. 13 5 00050 3

IN RE THE ADOPTION OF:

TIMOTHY E. BENNETT II

(DOB: 01/11/2007)

CONSENT BY ALLEGED NATURAL
FATHER TO ADOPTION,
RELINQUISHMENT, TERMINATION
OF PARENTAL RIGHTS, AND
WAIVER OF RIGHT TO RECEIVE
NOTICE OF ALL PROCEEDINGS

I, Zackariah J. Bennett, the alleged natural father of the child that is the subject of this adoption proceeding, hereby declare under penalty of perjury as follows:

1. I am the alleged father of Timothy E. Bennett II, who was born to Kelly J. Jovanovich on January 11, 2007, in Wheat Ridge, Colorado. I was born on 01/07/1981, I am 32 years old and I presently reside at c/o King County Correctional Facility, 500 - 5th Avenue, Seattle, Washington 98104.

2. Believing it to be in the best interest of the child, I confirm that I desire to relinquish the child to the adoptive parents herein and hereby authorize said adoptive parents to have custody of the child and have the power and authority to authorize and provide all necessary care for the child. I desire that an Order permanently terminating any and all of my parental rights to that child be entered herein.

3. I understand that my decision to relinquish the child is an extremely important one and the legal effect of this relinquishment will be to take from me any and all legal rights and obligations with respect to the child that I may have and that an order permanently

CONSENT TO ADOPTION BY NATURAL
FATHER - 1

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FILE COPY

P14

1
2 terminating all of my parental rights to the child will be entered by the Court. This means the
3 child will be free from all legal obligations of obedience and maintenance with respect to me
4 and shall be for all legal intents and purposes, the child, legal heir and lawful issue of the
5 adoptive parents, entitled to all rights and privileges as if the child were born to the adoptive
6 parents.

7 4. This consent is given subject to the approval of the Superior Court of the State
8 of Washington, and is to have no force or effect until approved by that Court and will not be
9 presented to the Court until a minimum of forty-eight (48) hours after it is signed, or if the
10 child is unborn, no sooner than forty-eight (48) hours after the child is born. Further, I agree
11 to jurisdiction and venue for this proceeding in Snohomish County Superior Court.

12 5. I understand this consent is revocable by me at any time prior to approval by
13 the Court by written revocation delivered to the Clerk of the Court. I understand this consent
14 can be revoked after Court approval only if said revocation is given within such forty-eight
15 (48) hour period to the person who sought my consent, either orally or in writing by me; and
16 that I must deliver or mail to the Clerk of the Court written notice of my revocation within
17 forty-eight (48) hours of giving my notice of revocation to the person who sought my
18 consent. The address of the Clerk of the Court where the consent will be presented or where
19 revocation of my consent must be delivered is: Snohomish County Superior Court Clerk,
20 Snohomish County Courthouse, 3000 Rockefeller Avenue, Everett, Washington 98201.

21 6. I understand that after this consent is approved by the Court, it is not
22 revocable (I can't take it back or change my mind) except for fraud or duress practiced by the
23 person requesting the consent, or for lack of mental competency at the time the consent was
24 executed by me and under no circumstances later than one (1) year after it is approved by the
25 Court.
26

CONSENT TO ADOPTION BY NATURAL
FATHER - 2

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P15

1 7. I have been asked whether or not I have any Native American (Indian) or
2 Alaska Native ancestry, and I provide the following information in response to that question.
3

4 (Note to father: Include name of any tribe(s) in your ancestry and indicate whether or not
5 you are a member): _____
6

7 8. I am not a member in the military service of the United States.

8 9. I hereby consent to the adoption of the above-named child by the petitioners
9 herein and consent and agree to the termination of any and all of my parental rights, whatever
10 they may be. I understand this consent may be voluntarily executed without disclosure of the
11 full names or other identification of the adoptive parents, although I do know them in this
12 case.

13 10. I hereby waive notice of presenting this consent to the Court and notice of
14 further proceedings in this matter, including proceedings for relinquishment, termination of
15 parental rights, and adoption. By this waiver, I understand that I will not receive notice of
16 any court proceedings concerning the termination of my parental rights or the adoption of the
17 child that is the subject of this adoption proceeding.

18 11. In executing this relinquishment and consent, I am not acting under any fraud,
19 duress or influence of anyone. I have read, or have had someone read to me, this document
20 and hereby declare that I understand the same. I also understand there are social services and
21 counseling services available in the community, and there may be financial assistance
22 available through State and local governmental agencies. I understand I have the right to
23 consult with my own attorney regarding this relinquishment and consent regarding these
24 proceedings and that Mark M. Demaray is the attorney for the adoptive parents. I
25 acknowledge that I have received a copy of this document for my own records.
26

CONSENT TO ADOPTION BY NATURAL
FATHER - 3

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P16

12. I have selected Brian Todd, who is at least
eighteen (18) years of age and whose address appears below, to witness my signature on this
consent. This person's relationship to me is Attorney.

Pursuant to the provisions of RCW 9A.72.085, I hereby declare under penalty of
perjury under the laws of the State of Washington that my statements are true and correct.

DATED this 1st day of March 2013, at 10 a.m./p.m.

Zack Bennett
Zackariah J. Bennett

Witness: Brian Todd

Address: Law Office of Brian J Todd

6523 California Ave SW #179

Phone: Seattle, WA 98136

Age: over 18

Did Witness Check ID?: yes - wristband

CONSENT TO ADOPTION BY NATURAL
FATHER - 4

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